

GOVERNMENT OF INDIA STATUTORY REGULATORY REPOSITORY

AYURLEX COMPLIANCE HANDBOOK — TRADE MARKS & BRAND PROTECTION FOR AYURVEDIC COMMERCE

2. Trade Marks & Brand Protection for Ayurvedic Commerce

Domain Identifier: trademarks | Statutory Authority: Trade Marks Registry (CGPDTM)

Legislative Base: The Trade Marks Act, 1999 (Act No. 47 of 1999) read with Trade Marks Rules, 2017.

Key Statutory Sections & Nice Classification:

- **Section 2(1)(zb) — Definition of Trademark:** Mark capable of graphical representation and distinguishing goods/services, including shape of goods, packaging, and combination of colours.
- **Section 2(1)(m) — Definition of Mark:** Includes device, brand, heading, label, ticket, name, signature, word, letter, numeral, shape of goods, packaging, or colour combinations.
- **Section 9 — Absolute Grounds for Refusal:** Prohibits marks lacking distinctiveness or consisting exclusively of descriptive terms (kind, quality, origin). **Ayurvedic Rule:** Generic plant names ('Ashwagandha', 'Triphala', 'Brahmi') cannot be monopolized by one brand.
- **Section 11 — Relative Grounds for Refusal:** Prohibits marks identical or confusingly similar to earlier registered marks for identical/similar goods.
- **Section 21 — Opposition Window:** Statutory 4-month public opposition period following Trade Marks Journal publication.
- **Section 23 & 25 — Certificate & Renewal:** Form O-2 Certificate issued upon completion; valid for 10 years and renewable indefinitely.
- **Section 28 & 29 — Exclusive Rights & Infringement:** Statutory rights to initiate civil actions for injunctions, profits, damages, and destruction of counterfeit inventory.

Nice Classification Classes for Ayurvedic Industry:

- **Class 5:** Ayurvedic medicines, herbal pharmaceuticals, therapeutic formulations, medicated oils.
- **Class 3:** Herbal cosmetics, non-medicated herbal oils, shampoos, soaps, skincare creams.
- **Class 30:** Ayurvedic dietary foods, herbal teas, spices, flour, Ayurveda Aahara food preparations.
- **Class 35:** Retail and wholesale distribution, online marketplaces, Ayurvedic clinic management.

Procedural Roadmap & Official Fees:

- **Form TM-A:** Single omnibus application for trademark registration. Government statutory fees: **₹4,500** for Individuals, Startups, and MSMEs (Udyam certificate mandatory); **₹9,000** for standard corporates. Submission entitles immediate usage of the TM symbol.
- **Examination & Form O-2:** Reply to examination report within 30 days. After 4-month journal window, Form O-2 Certificate is issued, enabling usage of the registered ® mark.

Optimal RAG Queries for this Dataset:

1. 'What is a trademark?' → Returns simple layperson definition first, followed by Section 2(1)(zb), Classes, and Sections 28/29.
2. 'How to register a trademark in India?' → Returns 6-step statutory process (Search → Class → Form TM-A → Reply → Journal → Form O-2).
3. 'Can I trademark the name Triphala for my herbal shop?' → Returns Section 9 generic refusal exclusion.
4. 'What Nice Class covers herbal shampoo and Ayurvedic skin cream?' → Returns Class 3 (cosmetics) vs Class 5 (medicated).